

Public Hearing on Art 10(4) AMLR – Business- wide risk assessment (BWRA)

28 May 2026

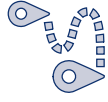
Policy on Private Sector Standards Unit

Agenda



Welcome

Rikke-Louise Ørum Petersen - Board Member Private Sector Standards Unit

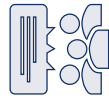


Introduction

Introduction to AMLA and Policy on Private Sector Standards Unit



Presentation on the draft GLs



Exchange of views

Floor opened for views from the audience



House keeping

- If you cannot hear us, please click on “connect to audio” or click on the three dots at the bottom of the screen and connect audio
- If you wish to take the floor:
 - Please **raise your hand** via the dedicated tool
 - Once the host gives you the floor, make sure you have enabled microphone in Webex parameters. **Unmute** yourself and turn the camera on.
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- Please do not record this meeting. If you do, you may be removed.

Introduction to AMLA

AMLA's role



AML/CTF Supervision

Direct supervision some of the most impactful credit and financial institutions (40) and **indirectly supervising** the rest

Oversight and coordination of supervisory authorities in the **non-financial sector**

Coordination and Support of EU FIUs

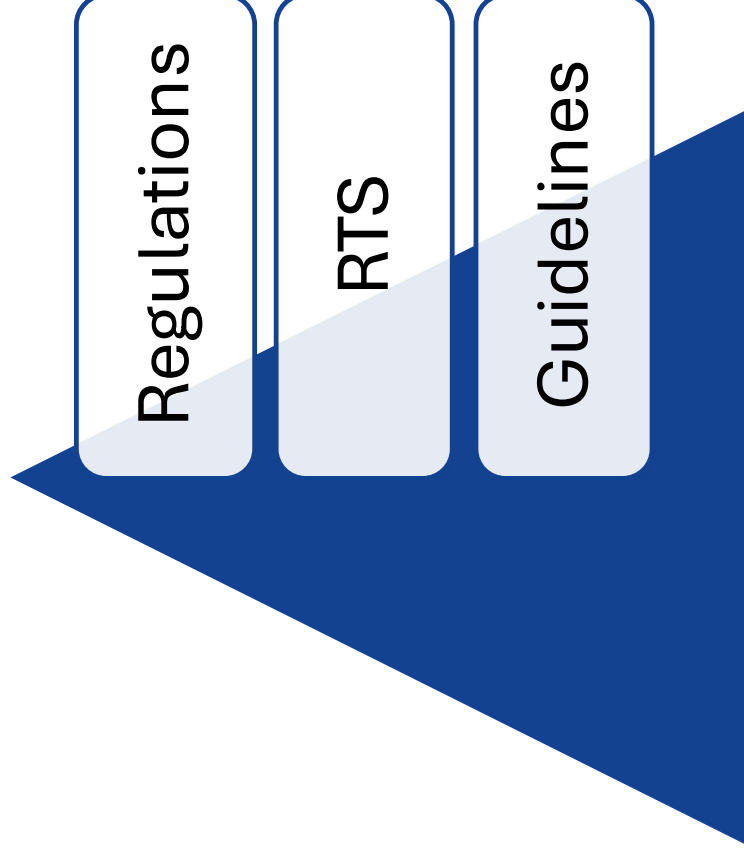
Support in cooperation and joint analyses by national FIUs

Regulation

Technical standards and guidelines addressed at: obliged entities, supervisors and FIUs

What are Guidelines?

- RTS: ensure consistent practices and uniform application of EU law
- Guidelines:
 - set supervisory expectations
 - ensure common, uniform and consistent application of EU law.
- GLs key features:
 - Cannot change the AMLR
 - Align with RTS
 - Non-legally binding,
- Adopted by AMLA



Draft GLs on BWRA

[Consultation Paper](#)

Mandate



Scope of the mandate 10.4

- AMLA shall issue guidelines:
 - on the **minimum requirements for the content** of the BWRA drawn up by the OE pursuant to paragraph 1,
 - and on **the additional sources** of information to be taken into account when carrying out the BWRA

Context

Article 10(1) :
*“ OEs shall take appropriate measures, proportionate to the nature of their business, including its risks and complexity, and their size, to **identify and assess the risks** of ML and TF to which they are **exposed**, as well as the risks of non-implementation and evasion of targeted financial sanctions”*

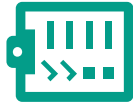
The BWRA is...

- The foundation of the OE's AML risk-based approach.
- Key purposes (AMLR) :
 - Risk awareness
 - Control gaps identification
 - Effective resource allocation
- Aligned with FATF Reco 1
- Restate requirements from 2015/849 (extended to TFS and new OEs).

The BWRA is not...

- Individual Risk assessment (art 20 – AMLR)
- Supervisory assessment (art 40(2) – AMLD)

AMLA Approach



Methodology

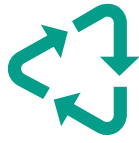
- Developed in interactions with the NCAs from both FS and NFS
- Inspired by National best practices (stock take of best practices)



AMLA's policy options considered

- Standardised/ prescriptive BWRA methodology or allow methodological flexibility for OEs?
 - Option chosen : Defining minimum steps and expectations for the BWRA while allowing OE methodological flexibility.
- Address the risks linked to TFS within the existing BWRA or through a separate assessment
 - Option chosen : Flexible approach : OE determine, based on their individual risk profiles, whether to address the risks of non-implementation and evasion of TFS within the existing BWRA or through a separate assessment.

AMLA Approach



Simplification

- Avoid **unnecessary duplication** where AMLR is clear and do not leave room for interpretation. The GLs should therefore be read in conjunction with :
 - Minimum list of sources to be used listed in Art. 10(1) deemed sufficiently clear (risk variables/ factors in AMLR Annexes, SNRA, NRA...)
 - Art. 10 (2) setting provisions on BWRA elaboration, documentation and updating.
- **Articulation with other related instruments :**
 - RTS on 40 (2) AMLD – Proportionality/ data points
 - GLs on Art. 9 (4) AMLR on Policies, Procedures and controls
 - GLs on Risk variables and Risk factors - Art. 20 (3) AMLR



Support to GLs implementation

- Development of communication material to accompany the guidelines (factsheet, explainer, sectorial illustrations) – to be published together with the GLs.

Key element of the GLs

Additional sources of information

- List of requirements that need to be taken into account under Level 1 was deemed sufficiently clear; no further detail added in the GLs
- Additional sources to be considered :

Public/ official authorities and international standards setters

Fraud observatories, central banks, statistical organisations, academia

Industry-level and professional sources

Industry bodies, professional associations, SRB, PPP

Independent external and civil society sources

Risk intelligence report, information from credible and reliable commercial organisations

Internal knowledge and professional expertise

From STR/ SAR/ exchange with FIUs, enforcement and judicial authorities
Findings from internal controls/ supervisory actions

Minimum requirements



BUSINESS AND OPERATIONAL OVERVIEW



IDENTIFY, ASSESS AND CLASSIFY INHERENT RISKS

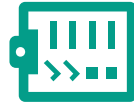


ASSESS THE QUALITY OF CONTROLS



ASSESS AND CLASSIFY RESIDUAL RISKS

Detailed structure of the GLs



Structure of the GLs

INTRODUCTION

Scope and Addressees of the Guidelines

GENERAL GUIDELINES

Key principles

Proportionality

Implementation

Identifying and assessing the risks associated with non-implementation and evasion of TFS

METHODOLOGY AND SOURCES OF INFORMATION

Methodology

Sources of information

Use of additional sources of information

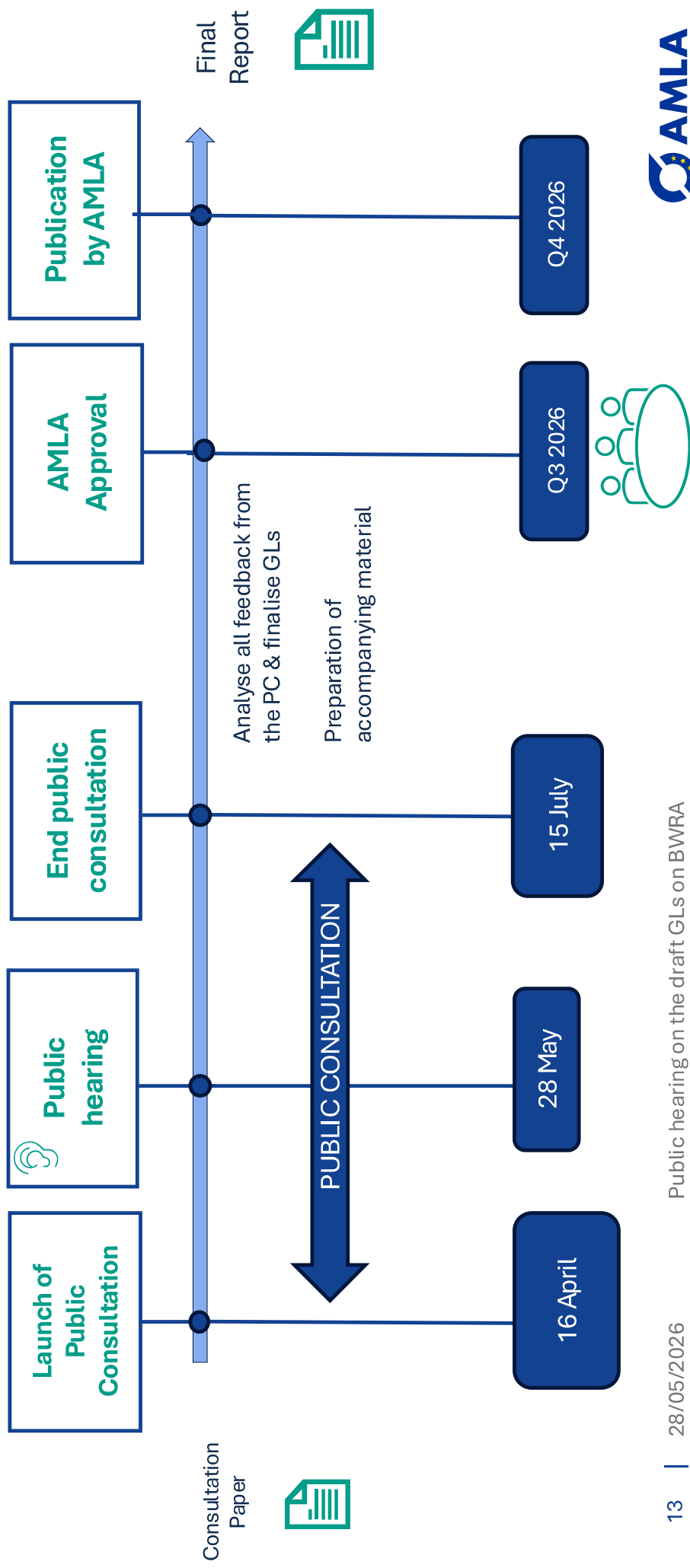
MINIMUM REQUIREMENTS



Focus on Proportionality

- Art 10.1 AMLR - BWRA should be **proportionate** to the OE's size, nature, and risks.
- BWRA is **inherently proportionate**—its complexity reflecting that of the OE
- **Exemption possible from the supervisor** where the risks in the sector is clear and understood (Art. 10 (3)).
- Other options envisaged in draft GLs:
 - **Non-complex OEs** → may apply a less sophisticated BWRA methodology and opt for a more qualitative and descriptive assessment
 - **Use a sectoral BWRA** developed by their supervisor.
- **Third parties** may assist, with OEs retaining full responsibility.

Next steps



Have your say

- Provide your written feedback by **15 July** for it to be duly considered.

[Consultation on the draft Guidelines on business-wide risk assessment - Authority for Anti-Money Laundering and Countering the Financing of Terrorism](https://ec.europa.eu/eusurvey/runner/4cab2d4e-afb5-9396-d0eb-cadfd1fcb138)

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- Ensure to follow the instructions when providing your comments :
 - Clearly specify the provision concerned with clear reference to the number of the paragraph referred to.
 - Provide concrete drafting proposals and explain why it would be appropriate



AMLA
Anti-Money Laundering
Authority

☒ Save a backup on your local computer (disable if you are using a public/shared computer)

Public consultation on the draft guidelines on Business-wide risk assessment under Article 10 (4)

Fields marked with * are mandatory.

Pages

- General information
- Respondent profile
- Public consultation questions

Draft guidelines on Business-wide risk assessment under Article 10 (4) – AMLR

2 DRAFT GUIDELINES



GENERAL GUIDELINES

KEY PRINCIPLES

3. Pursuant to Article 10 of the AMLR, OEs should carry out a BWRA, proportionate to the nature of their business, including its risks and complexity, and their size, to identify and assess the risks of ML and TF to which they are exposed, as well as the risk of non-implementation and evasion of TFS.

Floor open for views from the audience



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THANK YOU!

